

SANDERS v LUHRASSEBI, et al

25CV48021

PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY RESPONSES

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chichi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.") For ease of reference, the Court refers to Evoque, Luhrassebi, and Kulick as the "Evoque Defendants."

Now before the Court are Plaintiff's: 1) Motion to Compel Further Responses to Special Interrogatories, Set One (SROGs) and 2) Motion to Compel Further Responses to Requests for Production of Documents (RFP).

At the outset, the Court notes that there were multiple procedural problems with the motions and oppositions. Plaintiff should have filed a separate motion to compel for each defendant, as well as each discovery type. What was filed as two motions, was in reality six motions which not only is not compliant with rules for filing, but also unexpectedly increases the Court's workload. The opposition separate statements did not comply with California Rule of Court Rule 3.1345 because they did not contain the Plaintiff's stated arguments for compelling the further responses.

Counsel for both parties are admonished to review and adhere to this Court's local rules and the Code of Civil Procedure before future filings.

I. Factual and Procedural Background

The facts underlying this case have been recited by the Court in numerous previous rulings. In short, Plaintiff alleges that she was fraudulently manipulated into entering a commercial bridge loan ("Loan") instead of a residential loan which she eventually defaulted on.

This action was filed approximately one and a half years ago on April 23, 2025, and the parties have had previous discovery disputes before this Court. Relevant to this current dispute, Plaintiff served Evoque Defendants with the SROGs and RFPs on November 10, 2025. (Declaration of Cailin M. Ruff (“Ruff Decl.”) at ¶ 2.) After extensions, Evoque Defendants served their responses and produced documents on January 27, 2026. (*Id.* ¶ 3.) On February 27, 2026, the parties met and conferred via Zoom regarding which responses Evoque Defendants would supplement. (*Id.* at ¶ 5.) Following the Zoom, Plaintiff’s counsel sent a confirming email to Evoque Defendants’ counsel summarizing agreed-upon modified language and which responses would be supplemented. (*Id.*, Ex. A.)

On April 20, 2026, Evoque Defendants supplemented certain responses to Plaintiff’s discovery requests. (Ruff Decl. at ¶ 6.) However, Plaintiff asserts that the responses did not comport with the understanding reached at the Zoom meeting on February 27, 2026. (*Id.* ¶ 6, 9.) On June 17, 2026, Plaintiff sent a meet-and-confer letter indicating an intention to file a motion to compel. (*Id.* ¶ 9, Exs. A-C.) Due to Defendants transitioning to new counsel, the parties agreed that Plaintiff would have until July 10, 2026, to file the motion to compel. (Ruff Decl. ¶ 10, Ex. C.)

On July 8, 2026, the parties met again via Zoom. (Ruff Decl. ¶ 11.) Defendants’ counsel agreed that they likely could produce the requested documents, would confer with their clients, and requested additional time to review the matter. (*Id.* ¶¶ 11, 12, Ex. C.) Thereafter, Defendants counsel represented that Defendants “will be supplementing the responses which are not code compliant and/or are incomplete, as identified in previous discussions and correspondence.” (*Id.* ¶ 13, Ex. C.) On July 29, 2026, Plaintiff’s counsel proposed that Defendants supplement their response by August 7, 2026, and that Plaintiff’s motion to compel deadline would be August 14, 2026. (*Id.*, Ex. C.) Defendants agreed. (*Id.*, Ex. C.)

Defendants thereafter did not supplement their responses by the agreed-upon date. (Ruff Decl. ¶ 14.) A few days before Plaintiff’s deadline to move to compel further responses, Defendants’ counsel stated Defendants would supplement the day before Plaintiff’s deadline. (*Id.* at ¶ 15, Ex. C.) Defendants actually did not supplement certain responses to Request for Production of Documents until the day Plaintiff’s motion was due.

Plaintiff contends that despite the supplemental responses, key disputes over discoverability of other similar loans and financial information remain at issue. (Ruff Decl. at ¶ 15.)

II. Legal Standard and Discussion

All of Plaintiff’s motions are essentially seeking further responses regarding two categories of documents or lines of inquiry: 1) documents, policies or procedures, that demonstrate whether the Evoque Defendants brokered other loans similar to the Plaintiff’s Loan, and 2) personal and company financial incentives related to loan

origination. The motions also raise two primary categories of concerns: 1) compliance with the Code of Civil Procedure, and 2) whether Plaintiff's right to discovery overcomes any of the Defendants' raised privacy concerns or privileges.

"California law provides parties with expansive discovery rights" and relevance is interpreted and applied very broadly and is not limited to admissible evidence. (*Lopez v. Watchtower Bible & Tract Soc'y of New York, Inc.*, (2016) 246 Cal. App. 4th 566, 590–91.) The Court finds that all requested information is relevant to Plaintiff's claims, which put succinctly, allege that the Evoque Defendants purposefully engaged in predatory lending at Plaintiff's expense for their personal or professional gain. The requests are limited in time and scope and are not vague or confusing. Thus, Plaintiff has shown reasonable grounds for seeking this information/documentation.

A. Requests for Production

1. Evoque

Plaintiff moves to compel further responses from Evoque Defendants to RFP Nos. 11-13 and 16-20.

To each RFP, Evoque replied in a substantially similar manner, stating that it objected on the grounds that the RFP was vague, ambiguous, irrelevant, overly broad or implicated privacy.

Boilerplate objections, such as those made by Evoque, fail to satisfy the level of specificity required by the discovery statutes. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Indeed, it can be a misuse of the discovery process to provide, without substantial justification, an unmeritorious objection to discovery or to make an evasive response to discovery. (Code Civ. Proc. § 2023.010(e), (f).) Here, Evoque's responses were not code-compliant because they did not state with "particularity any document, tangible thing, land or electronically stored information falling within the category of item in the demand to which objection is being made." (Code Civ. Proc. § 2031.240(b) (1).) The responses also did not state whether documents cannot be produced because they never existed, were destroyed, lost, misplaced, or stolen, or 2) whether the documents are believed to be in the possession, custody, or control of another person or entity. (Code Civ. Proc. §2031.230.) Finally, the responses failed to specify whether any documents were withheld due to privilege.

Evoque is therefore ordered to provide code-compliant responses to RFP Nos. 11-13 and 17-20 on or before September 30, 2026.

As regards RFP No. 16, this request seeks documents concerning "loans brokered/originated between 1/1/2020 and present, that included balloon payments, interest rates of 10%, or short-term repayment schedules." Evoque objected on the grounds that the request was irrelevant and overly broad and implicated privacy concerns.

California recognizes and protects an individual's right to privacy. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) The party asserting a privacy right must establish: 1) a legally protected privacy interest, 2) an objectively reasonable expectation of privacy in the given circumstances, and 3) a threatened intrusion that is serious. (*Ibid.*) The Court must then look at the legitimate and important interests that the disclosure serves as well as any feasible alternatives that could diminish the loss of privacy and then balance these considerations. (*Ibid.*)

Plaintiff has demonstrated legitimate and important reasons for the disclosure of documentation showing loans made or originated by Evoque which were substantially similar to the Loan made to Plaintiff, including with balloon payments, high interest rates, or short-term repayment schedules. This information goes directly to Plaintiff's contention that she was targeted for this specific type of loan (and not the loan she originally sought) because Evoque has a policy or practice of engaging in this type of predatory behavior.

First, it is questionable whether the information sought actually implicates a privacy concern. As Plaintiff points out, information related to the terms of loans, including address, principal amount, balloon payments and interest rates are often included as documents publicly recorded with a Deed of Trust. However, even if the requested information does implicate a third party's right to privacy, Evoque has not offered any feasible alternative way for Plaintiff to obtain this information. Plaintiff, however, has already offered to meet and confer regarding redaction of specific personally private or identifiable information about third parties in any of the documents.

Accordingly, Evoque is ordered to provide a code-compliant response to RFP No. 16, including identification of responsive documents, and if there are no documents to be produced, Evoque must identify whether it looked for the documents or believes them to be in someone else's possession. Evoque is further ordered to engage in meaningful meet-and-confer discussions to identify whether there is personally identifiable information that should be redacted.

Evoque is therefore ordered to provide code-compliant responses, without objections, to RFP Nos. 11-13 and 16-20 on or before September 30, 2026.

2. Luhrassebi

Plaintiff moves to compel further responses to RFP Nos. 3-7.

RFP Nos.3 and 4 seek documents related to the transfer of assets, including dividends between Evoque and Luhrassebi (No. 3) and related to Luhrassebi's compensation with Evoque (No. 4.)

Luhrassebi provided mostly boilerplate objections to these RFPs, including vagueness, ambiguity, irrelevance, attorney-client privilege or taxpayer privilege, and privacy. Luhrassebi also failed to produce any documents.

As stated above, boilerplate objections, such as those made by Luhrassebi, fail to satisfy the level of specificity required by the discovery statutes. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Furthermore, Luhrassebi's response to FRP Nos. 3 and 4 are not code compliant because they did not state with "particularity any document, tangible thing, land or electronically stored information falling within the category of item in the demand to which objection is being made." (Code Civ. Proc. § 2031.240(b) (1.) The responses also did not state whether documents cannot be produced because they never existed, were destroyed, lost, misplaced, or stolen, or 2) whether the documents are believed to be in the possession, custody, or control of another person or entity. (Code Civ. Proc. §2031.230.)

As stated above, in California the party asserting a privacy right must establish: 1) a legally protected privacy interest, 2) an objectively reasonable expectation of privacy in the given circumstances, and 3) a threatened intrusion that is serious. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) The Court must then look at the legitimate and important interests that the disclosure serves as well as any feasible alternatives that could diminish the loss of privacy and then balance these considerations. (*Ibid.*)

Certainly, Luhrassebi's financial information implicates some privacy concerns. (*In re Marriage of Burkle* (2006) 135 Cal. App. 4th 1045, 1063 [the right to privacy extends to one's personal financial information].) However, this right is not without limits. Here, the Plaintiff has compelling reasons for needing information related to financial relationship and/or intermingling between Luhrassebi and Evoque, and Luhrassebi has not identified any feasible alternative means for Plaintiff to obtain this information. Nor has Luhrassebi sought a protective order in relation to these discovery requests.

In addition, while Luhrassebi is allowed to object and refuse to produce documents on the grounds of privilege, the objection here is not code compliant. Code Civil Procedure section 2031.240 provides that if a part of a response is objectionable, then the response "shall contain a statement of compliance" which must identify the responsive document, clearly state the particular privilege being invoked, and provide sufficient factual information for the other parties to evaluate the merits of the claim, including, if necessary, a privilege log. (*Id.* subd (a)-(c)(1).)

RFP No. 5-7 seek documentation related to consumer complaints or investigations, communications with government agencies about predatory lending, and any similar lawsuits against Luhrassebi since January 2020.

In his supplemental responses, Luhrassebi states that he *will* produce responsive documents or *will* produce all “non-privileged” responsive documents. The Court agrees with Plaintiff’s contention that these responses are insufficient. It is unclear from the responses whether Luhrassebi will be producing additional documents on top of those already produced and further does not identify whether there are responsive documents which are being withheld on the grounds of a privilege.

Accordingly, Luhrassebi is ordered to provide code compliant responses, without objections, to RFP Nos. 3-7, on or before September 30, 2026.

3. Kulick

Plaintiff seeks further responses to RFP Nos. 1, 3, and 8. RFP No. 1 seeks documents reflecting Kulick’s employment contract and job description with Evoque. RFP No. 3 seeks communications between Kulick and Evoque CEO or other officers showing any “instruction or direction regarding classification of the loans as ‘business purpose’ from January 1, 2020, to present. RFP No. 8 seeks documents and communications regarding Kulick’s understanding of Plaintiff’s employment history, financial condition or injury status.

To each RFP, Kulick replied in a substantially similar manner, stating that it objected on the grounds that the RFP was vague, ambiguous, irrelevant, overly broad or implicated privacy.

Again, boilerplate objections, such as those made by Kulick, fail to satisfy the level of specificity required by the discovery statutes. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Here, Kulick’s responses were not code-compliant because they did not state with “particularity any document, tangible thing, land or electronically stored information falling within the category of item in the demand to which objection is being made.” (Code Civ. Proc. § 2031.240(b) (1.)) The responses also did not state whether documents cannot be produced because they never existed, were destroyed, lost, misplaced, or stolen, or 2) whether the documents are believed to be in the possession, custody, or control of another person or entity. (Code Civ. Proc. §2031.230.)

Plaintiff asserts that this information is relevant to the issue of whether the Evoque Defendants engaged in a pattern or practice of creating predatory loans, and whether they did so intentionally with Plaintiff (despite her personal financial history). This information is relevant. The requests are reasonably limited in time and are not vague or ambiguous. Defendant provides no reasonable basis not to provide responses.

Accordingly, Kulick is ordered to provide code compliant supplemental responses to RFP Nos. 1, 3, and 8 on or before September 30, 2026.

B. Special Interrogatories

1. Evoque

Plaintiff moves to compel further responses to SROG Nos. 6 which asks Evoque to “identify all loans brokered by Evoque from January 1, 2020, to the present, that involved interest rates exceeding 10%, balloon payments, or terms less than five years.”

Evoque responded only with objections, including irrelevance, privacy, or unduly burdensome. These boilerplate objections fail to satisfy the level of specificity required by the discovery statutes. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.)

The Court finds that the request is relevant and limited in time and scope. While Evoque may have reasonable concerns about the privacy rights of other borrowers, it once again fails to identify how Plaintiff could obtain information about Evoque’s pattern of predatory lending, without this information. Additionally, Plaintiff has already agreed to limit the request to non-privileged information (if any exists).

Accordingly, Evoque is ordered to provide a code-compliant response, without objections, to SROG No. 6 on or before September 30, 2026.

2. Luhrassebi and Kulick

Plaintiff moves to compel further responses to SROG No. 8 for both Luhrassebi and Kulick. This request seeks information related to Luhrassebi’s “compensation structure” for his position, including commissions and bonuses.

Once again, both Defendants responses were mostly boilerplate objections related to relevance, privilege and privacy.

The request is relevant and reasonable given Plaintiff’s allegations that the Evoque Defendants worked together to purposefully prey on borrowers like Plaintiff. Neither objecting Defendant has identified how the structure of his compensation, and how he would receive bonuses, would implicate his privacy rights or implicate any privilege.

Accordingly, Luhrassebi and Kulick are ordered to provide a code-compliant response, without objections, to SROG No. 8 on or before September 30, 2026.

C. Sanctions

The Court may impose sanctions for the misuse of the discovery process. Here, while Evoque Defendants may have had legitimate concerns about third party privacy or privilege, they failed to provide code-compliant responses despite Plaintiff's repeated requests. As such sanctions are warranted.

Plaintiff requests sanctions in the amount of \$2400 related to the Motions to Compel Further Responses to RFPs and another \$2400 related to the Motions to Compel Further Responses to SROGs for a total of \$4800. Plaintiff reaches this amount by calculating eight hours of time at \$600 per hour.

The Court finds that \$600 is outside the normal range for attorneys in this jurisdiction and reduces the rate to \$300. Accordingly, **Evoque Defendants are ordered to pay \$2400 in sanctions, apportioned \$1,200 per filed motion, by September 30, 2026.**

III. Conclusion

Evoque Defendants are ordered to provide supplemental code-compliant responses, without objections, to RFPs and SROGS as requested by Plaintiff in her motions to compel. Responses are due to Plaintiff on or before September 30, 2026. Evoque Defendants are ordered to pay \$2400 in sanctions on or before September 30, 2026.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Orders, modified to reflect the awarded sanction amount.

MEDALLION BANK v HALLETT

25CV48397

PLAINTIFF COUNSEL'S MOTION TO BE RELIEVED

Collen M. Auer, Esq. and Auer Ryan PC ("Firm") seek to be relieved as counsel of record for Plaintiff Medallion Bank ("Plaintiff.")

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (Civil Form MC-0510); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (Civil form (MC052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Civil form (MC-053)).

Attorney Collen M. Auer and her Firm seek to withdraw as Plaintiff's counsel because the Principals of the firm are retiring and the Firm is closing business as of August 31, 2026. Ms. Auer and Firm represent that judgment in this matter was entered on July 6, 2026, the time for appeal has run, and there are no remaining matters on this Court's calendar in this case. Ms. Auer and Firm represent that Plaintiff has been aware of the impending retirement and closure for an ample period of time and has not expressed any disagreement but has failed to respond to the Firm's effort to obtain a signed consent to withdraw.

Ms. Auer and Firm have informed Plaintiff of their intention to withdraw as counsel via U.S. mail at an address confirmed to be accurate within the past thirty days.

Based on the foregoing, the Motion to Be Relieved is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order.